

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KRYSTAL ANDERSON

Plaintiff(s)

Index No.:

-against-

CITY OF NEW YORK and
SGT. LEONARDO DEOLIVEIRA,

Defendant(s)

SUMMONS IN A CIVIL ACTION

To the above named Defendants:

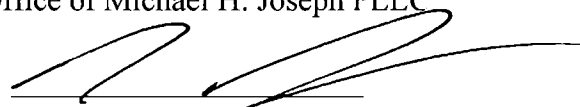
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, N.Y.

Wednesday, June 21, 2023

Yours etc.,

Law Office of Michael H. Joseph PLLC

BY: 

Michael H. Joseph, Esq.,
18 West 33rd Street, Suite 400
New York, NY 10001
Tel: 212-858-0503
Email: michael@newyorktriallawyers.org

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KRYSTAL ANDERSON

Plaintiff(s)

Index No.:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK and
SGT. LEONARDO DEOLIVEIRA,
Defendant(s)

JURY TRIAL DEMANDED

Plaintiff, by and through her undersigned attorneys, Law Office of Michael H. Joseph, PLLC, as for her complaint against Defendants states:

1. At all relevant times herein, plaintiff, Krystal Anderson was and is a resident of the State of New York and County of Queens.
2. At all relevant times herein, the City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all relevant times herein, Defendant Sgt Leonardo DeOliveira (Hereinafter “DeOliveira”) was and is a resident of the State of New York and County of Kings.
4. On or about January 31, 2023 and at all times relevant herein, Party was a duly sworn police officer employed by the City of New York.
5. On or about January 31, 2023 and at all times relevant herein, DeOliveira was acting under the color of law and acting in the course and scope of his employment with the City of New York.

COUNT I: FALSE ARREST UNDER NEW YORK STATE LAW

6. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
7. On or about January 31, 2023 at approximately 9:00 PM, Plaintiff was lawfully in the vicinity of 1290 Brooklyn Ave, Brooklyn NY 11203 and was lawfully observing and filming her brother being falsely arrested, when Defendant DeOliveira became aggressive and arrested Plaintiff even though there was no probable cause or reasonable suspicion to believe that Plaintiff had committed any crime.
8. At the aforesaid date, time, and place, Plaintiff had not committed any crime nor was there any reasonable suspicion to believe that Plaintiff had committed a crime.
9. At the aforementioned time, date, and place, Defendant DeOliveira unlawfully seized, searched, and falsely arrested Plaintiff for Disorderly Conduct, Obstruction of Governmental Administration and Resisting Arrest.
10. At the aforementioned date, time, and place, there was no probable cause or reasonable suspicion to believe that Plaintiff committed the aforesaid crimes, in that Plaintiff did not commit any acts that could be considered disorderly conduct, in that she did not interfere at all in the Defendant's unlawfully arrest of her brother, nor did she resist being falsely arrested at all; to the contrary said charges were at all times relevant baseless and instituted in retaliation for the Plaintiff filming the Defendant engaging in misconduct, including the false arrest of the Plaintiff's brother.
11. Defendant(s) arrested, confined and caused Plaintiff to be deprived of her freedom and liberty, all without a cause, excuse, or justification and without Plaintiff's consent.
12. Defendant DeOliveira's actions violated clearly established rights.

13. No reasonable officer in the position of DeOliveira would have believed the actions of the Defendants herein were objectively reasonable.
14. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of her freedom and further suffered negative employment actions, as a result of the aforesaid unlawful arrest.
15. The Defendants are jointly and severally liable to the harms caused to Plaintiff.
16. Within ninety days after the occurrence complained of herein, Plaintiff served a verified notice of claim upon the City of New York, based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the City of New York has failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.
17. A statutory hearing has been held and all prerequisites to suit have been fulfilled.
18. The City of New York, is vicariously liable for the acts and omissions of DeOliveira complained of herein, all of which were committed in the course and scope of DeOliveira's employment based upon respondeat superior.
19. The amounts sought herein exceed the jurisdictional limits of all courts of inferior jurisdiction.

COUNT II: FALSE ARREST UNDER 42 U.S.C. § 1983

20. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.

21. By making the aforesaid arrest of the Plaintiff, without probable cause, justification and privilege, Defendants' actions violated the Plaintiff's civil rights, including but not limited to her rights under the Fourth, Eighth, and Ninth Amendments of the United States Constitution, including but not limited to, the right not to be unreasonably seized and searched, as well as her right to personal liberty.
22. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of the rights and immunities guaranteed by the United States Constitution, as well as the constitution of the State of New York and suffered negative employment consequences.
23. Defendants are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

COUNT II: CUSTOM, POLICY, AND MONNELL LIABILITY

24. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
25. At all times relevant herein, The City of New York had a custom, policy, and practice of improper hiring, training, and supervision, allowing and permitting constitutional violations, suffering and permitting baseless stop and arrest tactics, tacitly permitting the abuse of detainees by officers, and failing to discipline officers so that that such deficiencies were likely to cause a violation of civil rights.
26. The City of New York acted in accordance with the aforementioned custom, policy, and practice, in their arrest of the Plaintiff thereby allowing improper conduct to occur and failing to prevent the occurrences described herein.

27. The aforementioned customs, policies, and practices, proximately caused the constitutional violations against Plaintiff and the aforementioned harms and injuries to Plaintiff.
28. Defendants are jointly and severally liable.

COUNT III: ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

29. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length
30. The foregoing events constitute violations of Plaintiff's statutory and constitutional rights, thereby entitling her to attorneys fees, costs and disbursements as permitted by 42 U.S.C. § 1988.

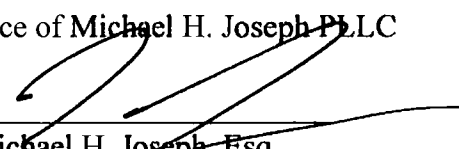
WHEREFORE, Plaintiff demands that judgment be entered for Plaintiff against Defendants in an amount to be determined by the trier of fact for compensatory and punitive damages, plus attorney's fees, interest, costs and disbursements, along with whatever further relief the Court deems just and proper.

Dated: New York, N.Y.
Wednesday, June 21, 2023

Yours etc.,

Law Office of Michael H. Joseph PLLC

BY:


Michael H. Joseph, Esq.,
18 West 25th Street, Suite 400
New York, NY 10001
Tel: 212-858-0503
Email: michael@newyorktriallawyers.org

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NOTICE OF ELECTRONIC FILING AVAILABILITY

PLEASE TAKE NOTICE that plaintiff(s)/defendant(s) in the case captioned above consents and intends that this matter shall proceed as an electronically-filed case in the Filing by Electronic Means System ("FBEM") in accordance with the procedures therefor, described below. Service of papers by electronic means cannot be made upon a party unless that party consents to use of the system. As soon as possible after service of this Notice, each party served must indicate whether it consents.

General Information

In New York State, actions may be commenced and cases processed by means of the FBEM system in (1) tax certiorari claims in the Supreme Court in New York City and in Monroe, Westchester, and Suffolk Counties; (2) tort claims, and commercial claims in the Commercial Division, in the Supreme Court in New York City and in Albany, Monroe, Nassau, Suffolk, and Westchester counties; (3) commercial claims in the Commercial Division of Supreme Court, and proceedings in Surrogate's Court, in Erie County; and (4) selected claims against the State of New York.

Electronic filing offers significant benefits for attorneys and litigants, permitting papers to be filed with the court and served in a simple, convenient and expeditious manner. FBEM case documents are filed with the court by filing on the FBEM Website (go to "E-Courts" at www.nycourts.gov), which can be done at any time of the day or night. The documents are deemed filed when they are received by the Unified Court System server. The use of FBEM is governed by Section 202.5-b (Supreme Court), and 206.5 and 206.5-aa (Court of Claims) of the Uniform Rules for the Trial Courts.

Instructions

1. The service of this Notice constitutes a statement of intent by the undersigned that the FBEM system be used in this case. When an action or proceeding is being commenced by means of the system, this Notice must accompany service of the initiating papers.

2. As soon as possible after service of this Notice, the party served shall advise all parties whether it will agree to have the matter proceed by FBEM. Where the party served agrees, that party must, as soon as possible after service, file with the court and serve on all parties a Consent to FBEM. A Consent form can be found in the "Forms" Section of the FBEM Website. The form and other aspects of FBEM are explained in the User's Manual, available on the Website. When this Notice Regarding Availability is served with papers initiating a lawsuit, the consent must be filed prior to service of or with the responsive pleadings or motion addressed to the pleadings.

3. Once parties agree that the case will be subject to FBEM, each must PROMPTLY submit a Filing User Registration form (see the "Forms" section of the Website) to obtain the confidential Filing User

Identification Number and Password necessary to use the system. A party represented by an attorney who has previously registered as a Filing User in another case may file and serve the Consent to FBEM electronically by checking the designated box and following the instructions on the FBEM Website.

4. For additional information about FBEM, see the User's Manual and Frequently Asked Questions on the Website or contact the court in question or the FBEM Resource Center (at 646-386-3033).

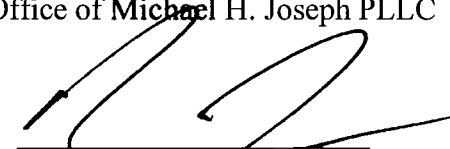
Dated: New York, NY

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